

Criteria for a Complaint Manager or Incident Manager

VERSION 1.0	EFFECTIVE [] [] [] []	NEXT REVIEW [] [] [] []	OWNER Principal / Key Management Personnel	APPROVED BY Governing body
-----------------------	------------------------------	--------------------------------	--	--------------------------------------

A Complaint Manager or Incident Manager (internal or external) must be impartial and free of actual or apprehended bias. The test for apprehended bias is whether a fair-minded observer might reasonably suspect the manager is not impartial.

Indicators of apprehended bias

Apprehended bias can be inferred from a person's conduct, comments, associations or other circumstances — for example where the manager:

- has a conflict of interest or personal stake in the matter, or a relationship with one of the parties that casts doubt on the appearance of fairness;
- has displayed hostility or favouritism toward one of the parties;
- has made comments suggesting they have prejudged a disputed issue and will not approach the evidence with an open mind; or
- was involved at an earlier stage — for example in making the allegation or providing a statement in support of a party.

Managing bias and conflict of interest

Actual or apprehended bias can undermine the integrity and legal validity of the decision. The responsibility rests on the manager to ensure there is no actual or apprehended bias and, if necessary, to withdraw and assign the decision to another person.

It is good practice to clarify bias and conflict-of-interest concerns before the process begins. Once informed of a potential issue, the parties may waive any objection and allow the manager to continue. A manager should not be chosen or withdrawn merely because a party raises a bias objection.

If a bias issue arises after evidence and submissions have been collected, that material can generally be made available to the new decision-maker, subject to procedural fairness. Consult the parties about this option before doing so.

Selecting a manager

For [] Complaint Manager is normally the Principal where the complaint is about a worker other than the Principal; where the complaint is about the Principal (or it would be inappropriate for an internal person to manage it), an External Complaint Manager is appointed. More than one person may act as Complaint Manager for organisational reasons or to avoid a conflict of interest or the appearance of bias.